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District Court, U.S.

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In the Supreme Court of the United States

OCTOBER TERM, 1994

JOHN J. HURLEY, INDIVIDUALLY, AND THE
SOUTH BOSTON ALLIED WAR VETERANS COUNCIL,
PETITIONERS,

v.

IRISH-AMERICAN GAY, LESBIAN AND BISEXUAL
GROUP OF BOSTON, AN UNINCORPORATED ASSOCIATION,
BY AND THROUGH TIMOTHY DALEY, BARBRA KAY, AND
CATHLEEN FINN, ACTING ON THEIR OWN BEHALF
AND ON BEHALF OF MEMBERS OF THE ASSOCIATION,
RESPONDENTS.

ON WRIT OF CERTIORARI
TO THE SUPREME JUDICIAL COURT OF
THE COMMONWEALTH OF MASSACHUSETTS.

BRIEF FOR PETITIONERS

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QUESTIONS PRESENTED FOR REVIEW

I. Whether the Supreme Judicial Court of the Commonwealth of Massachusetts violated the First and Fourteenth Amendment rights of the Petitioners when it compelled the Petitioners to include, in their privately organized Parade, conducted in a traditional public forum, a message the Petitioners deemed unwanted and antithetical?

II. Whether Petitioners' refusal to include a 'gay, lesbian and bisexual message within a private parade can be declared by the government unlawful discrimination, without violating the First and Fourteenth Amendments?

Table of Contents

Questions Presented	i
Table of Contents	ii
Table of Authorities	iii
Opinions Below	1
Jurisdiction	2
Constitutional Provisions Involved	2
Statutes Involved	2
Statement of the Case	3
Summary of the Argument	9
Argument	11
I. The Veterans' Parade is Their Expression, The Content of Which is Protected by The First Amend- ment Against Government Control	11
A. A Parade Is Inherently Expressive — Speech <i>Per Se</i>	11
1. The Parade Has a Theme and Clear Mes- sages Which Are Selected By the Veterans	14
2. The First Amendment Protects Speech, Regardless of Whether the Expression Is Narrowly Focussed, Includes Multiple Messages, or the Speaker Is Able to Articulate An Expressive Purpose	16
B. Appellate Review of Cases Involving First Amendment Claims Requires Careful Scrutiny of the Record as a Whole, and Not Deference to Lower Courts	19
C. The Veterans Cannot Be Forced to Include Someone Else's Message In Their Parade and They Have a First Amendment Right to Re- main Silent on the Subject of Homosexuality	21
D. The Constitution Protects the Veterans' Right to Associate For Expressive Purposes	28

TABLE OF CONTENTS (CONT'D)

1. The Veterans Council is a Membership Organization and the Parade Is Their Expression	29
2. The First Amendment Protects the Right of an Expressive Association to Control the Content of Its Own Speech	32
3. The State's Interest in Preventing Discrimination Based on Sexual Orientation in Places of Public Accommodation Is Not Implicated by the Veterans' Permitted Parade	33
4. Even if the State's Anti-Discrimination Interest Were Implicated, It Cannot Stand Against the Veterans' First Amendment Right to Create Its Own Voice	34
II. The Veterans' Refusal to Include the Gay, Lesbian and Bisexual Message Within the Parade Cannot Be Declared Unlawful Discrimination Under the Massachusetts Public Accommodation Laws Because Those Laws are Unconstitutionally Overbroad	34
Conclusion	40
Statutory Appendix	41

Table of Authorities

CASES

<i>Aboud v. Detroit Bd. of Education</i> , 431 U.S. 209 (1977)	32
<i>Bose Corp. v. Consumers Union of the United States</i> , 466 U.S. 485 (1984)	20
<i>Broadrick v. Oklahoma</i> , 413 U.S. 601 (1973)	39
<i>Buckley v. Valeo</i> , 424 U.S. 1 (1976)	28
<i>Boos v. Barry</i> , 485 U.S. 312 (1988)	13n

TABLE OF AUTHORITIES (CONT'D)

<i>Cantwell v. Connecticut</i> , 310 U.S. 296 (1940)	19
<i>City of Lakewood v. Plain Dealer Publishing Co.</i> , 486 U.S. 750 (1988)	19
<i>City of Houston v. Hill</i> , 482 U.S. 451 (1987)	39
<i>Cohen v. California</i> , 403 U.S. 15 (1971)	18
<i>Clark v. Community for Creative Non-Violence</i> , 468 U.S. 288 (1984)	17, 18
<i>Commonwealth v. Stephens</i> , 25 Mass. App. Ct. 117, 515 N.E.2d 606 (Mass. App. Ct. 1987)	38n
<i>Concord Rod & Gun Club v. M.C.A.D.</i> , 402 Mass. 716, 524 N.E.2d 1364 (1988)	32
<i>Conner v. Sakai</i> , 15 F.3d 1463 (9th Cir. 1993)	36n
<i>Consolidated Edison Co. v. Public Service Comm'n</i> , 447 U.S. 530 (1980)	12n, 13, 19, 26n
<i>Cox v. New Hampshire</i> , 312 U.S. 569 (1941)	11
<i>Dallas v. Stanglin</i> , 490 U.S. 19 (1989)	32
<i>Edwards v. South Carolina</i> , 372 U.S. 227 (1963)	20
<i>Gay Veterans Ass'n v. American Legion</i> , 621 F.Supp. 1510 (S.D.N.Y. 1985)	22
<i>Grayned v. City of Rockford</i> , 408 U.S. 104 (1972)	23
<i>Gregory v. City of Chicago</i> , 394 U.S. 111 (1969)	11, 13, 18
<i>Hague v. Committee for Industrial Organization</i> , 397 U.S. 497 (1939)	12n
<i>Heffron v. International Society for Krishna Conscious-</i> <i>ness</i> , 452 U.S. 640 (1981)	12n
<i>Hudgens v. National Labor Relations Board</i> , 424 U.S. 507 (1976)	13n
<i>Invisible Empire of the Knights of the K.K.K. v. Mayor</i> <i>of Thurmont</i> , 700 F.Supp. 281 (D.Md. 1988)	11

TABLE OF AUTHORITIES (CONT'D)

<i>Irish-American Gay, Lesbian & Bisexual Group of Boston v. City of Boston, South Boston Allied War Veterans Council, John J. Hurley</i> , No. 92-1518A (1993)	
.....	<i>passim</i>
<i>Irish-American Gay, Lesbian & Bisexual Group of Boston v. City of Boston</i> , 418 Mass. 238, 636 N.E.2d 1293 (1994)	<i>passim</i>
<i>Jacobellis v. Ohio</i> , 378 U.S. 184 (1964)	20
<i>Keller v. State Bar of California</i> , 496 U.S. 1 (1990)	32
<i>Lehnert v. Ferris Faculty Association</i> , 500 U.S. 507 (1991)	24
<i>Long Beach Lesbian and Gay Pride, Inc. v. City of Long Beach</i> , 17 Cal.Rptr.2d 861 (Cal. App. Ct. 1993)	13
<i>Loving v. Virginia</i> , 388 U.S. 1 (1967)	26n, 27n
<i>Meyer v. Grant</i> , 486 U.S. 414 (1988)	12, 18
<i>Miami Herald Publishing Co. v. Tornillo</i> , 418 U.S. 241 (1974)	22
<i>N.A.A.C.P. v. Alabama</i> , 357 U.S. 449 (1958)	29
<i>N.A.A.C.P. v. Button</i> , 371 U.S. 415 (1963)	38n
<i>New York County Bd. of Ancient Order of Hibernians v. Dinkins</i> , 814 F.Supp. 358 (S.D.N.Y. 1993)	11, 13, 27
<i>New York State Club Ass'n v. New York City</i> , 487 U.S. 1 (1988)	33
<i>New York Times v. Sullivan</i> , 376 U.S. 254 (1964)	20
<i>Pacific Gas & Electric Co. v. Public Utilities Comm'n</i> , 475 U.S. 1 (1986)	22, 28, 34
<i>Pennekamp v. Florida</i> , 328 U.S. 331 (1946)	20
<i>Perry Educ. Ass'n v. Perry Local Educators' Ass'n</i> , 460 U.S. 37 (1983)	12n
<i>Police Dept. of Chicago v. Mosley</i> , 408 U.S. 92 (1971)	13n
<i>R.A.V. v. City of St. Paul</i> , 112 S.Ct. 2538 (1992)	35
<i>Redgrave v. B S.O.</i> , 855 F.2d 888 (1st Cir. 1988)	23

TABLE OF AUTHORITIES (CONT'D)

<i>Riley v. National Federation of the Blind</i> , 487 U.S. 781 (1988)	12, 14, 16, 22
<i>Roberts v. United States Jaycees</i> , 468 U.S. 609 (1984)	30, 31, 32, 33
<i>Rotary International v. Rotary Club of Duarte</i> , 481 U.S. 537 (1987)	33
<i>Roth v. United States</i> , 354 U.S. 476 (1957)	20
<i>Sanders v. United States</i> , 518 F.Supp. 728 (D.D.C. 1981)	23
<i>Shuttlesworth v. City of Birmingham</i> , 394 U.S. 147 (1969)	11
<i>Smith v. Suburban Restaurants, Inc.</i> , 374 Mass. 528, 373 N.E.2d 215 (1978)	36
<i>South Boston Allied War Veterans Council v. City of Boston</i> , No. 94-11402 MLW (January 17, 1995) (D. Mass.)	19n
<i>South Boston Allied War Veterans Council v. Zobel</i> , 830 F.Supp. 643 (D. Mass. 1993)	5
<i>Southeastern Promotions, Ltd. v. Conrad</i> , 420 U.S. 546 (1975)	19
<i>Tacynec v. City of Philadelphia</i> , 687 F.2d 793 (1982) . . .	13
<i>Thomas v. Collins</i> , 323 U.S. 516 (1945)	12
<i>United States v. Grace</i> , 461 U.S. 171 (1983)	12n, 21
<i>United States v. O'Brien</i> , 391 U.S. 367 (1968)	18n
<i>United States v. Reese</i> , 92 U.S. 214 (1876)	39
<i>United States Jaycees v. M.C.A.D.</i> , 391 Mass. 594, 463 N.E.2d 1151 (1984)	36n, 37
<i>Ward v. Rock Against Racism</i> , 491 U.S. 781 (1989) . . .	13n
<i>Welsh v. Boy Scouts of America</i> , 995 F.2d 1267 (7th Cir. 1993)	36n
<i>West Virginia Bd. of Education v. Barnette</i> , 319 U.S. 624 (1943)	10, 22, 28

TABLE OF AUTHORITIES (CONT'D)

<i>Winters v. New York</i> , 333 U.S. 507 (1948)	36
<i>Wooley v. Maynard</i> , 430 U.S. 705 (1977)	8, 22, 23

Constitutional Provisions

United States Constitution	
Amendment I	<i>passim</i>
Amendment XIV	<i>passim</i>

Statutory Provisions

United States Code	
42 U.S.C. § 1983	5
Massachusetts General Laws	
c. 265, § 37	38n
c. 272, § 92A	<i>passim</i>
c. 272, § 98	<i>passim</i>
Boston Transportation Department Rules	
Art. VIII, § 1	44

Miscellaneous

A. de Tocqueville, <i>I Democracy in America</i> (Francis Bowen ed. 1990)	28
Black's Law Dictionary (5th edition)	36n
Oxford English Dictionary	11n

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BRIEF FOR PETITIONERS

OPINIONS BELOW

The Opinion of the Supreme Judicial Court for the Commonwealth of Massachusetts in *Irish-American Gay, Lesbian and Bisexual Group of Boston & others v. City of Boston & others*, SJC-06498 (July 11, 1994), is included in Appendix C to the Petition for Writ of Certiorari (C1). The Opinion and Judgment of the Superior Court of the Commonwealth of Massachusetts, *Irish-American Gay, Lesbian and Bisexual Group of Boston v. City of Boston, South Boston Allied War Veterans Council, and John J. Hurley*, Superior Court Civil Action No. 92-

1518A (December 15, 1993) is included in Appendix B to the Petition for Writ of Certiorari (B1).

JURISDICTION

On March 11, 1994, the Supreme Judicial Court of the Commonwealth of Massachusetts affirmed the Judgment and Order of the Superior Court, dated December 24, 1993. *See* Petition for Writ of Certiorari, Appendices C and B, respectively. On July 11, 1994, the Supreme Judicial Court issued its Opinion. 418 Mass. 238, 636 N.E.2d 1293 (1994). A Petition for Rehearing, after extensions of time were granted by the Supreme Judicial Court, was timely filed and was denied on July 26, 1994. *See* Petition for Writ of Certiorari, Appendix D (D1).

The Writ of Certiorari was granted by this Court on January 6, 1995.

The jurisdiction of this Court is invoked under 28 U.S.C. § 1257(a).

CONSTITUTIONAL PROVISIONS INVOLVED

This case involves portions of the First and Fourteenth Amendments to the Constitution:

“Congress shall make no law . . . abridging freedom of speech . . .”

U.S. Constitution, Amendment I.

“Nor shall any state deprive any person of life, liberty, or property without due process of law . . .”

U.S. Constitution, Amendment XIV, § 1.

STATUTES INVOLVED

The statute involved in Massachusetts General Law chapter 272, sections 92A and 98. M.G.L. c. 272, §§92A and 98.

STATEMENT OF THE CASE

At issue in this case is: (1) whether, without violating the First and Fourteenth Amendments, the Commonwealth of Massachusetts may compel Petitioners John J. Hurley and the South Boston Allied War Veterans Council (Veterans) to include the Irish-American Gay, Lesbian and Bisexual Group of Boston (GLIB), Respondents, as a group, marching under its own banner, in the Veterans' annual St. Patrick's Day/Evacuation Day Parade; and (2) whether the First and Fourteenth Amendments were violated when the government declared the Veterans' refusal to include GLIB's message in the Veterans' Parade "discrimination based on sexual orientation," in violation of a penal public accommodation statute.

The Veterans Council is a private, unincorporated, non-profit, charitable organization of elected and appointed representatives from American Legion, Disabled Veterans, and Veterans of Foreign Wars Posts in South Boston. (Tr. 371-72.) The Veterans have annually applied for and received a parade permit from the City of Boston, and have organized and conducted their annual St. Patrick's Day/Evacuation Day Parade in South Boston since 1947. (J.A. A98.)

GLIB was formed in January 1992, to march in the St. Patrick's Day/Evacuation Day Parade.¹ *Irish-American Gay, Lesbian & Bisexual Group of Boston v. City of Boston*, No. 92-1518A (Mass. Super. Ct. Dec. 15, 1993), *aff'd*, 418 Mass. 238, 636 N.E.2d 1293 (Mass. 1994), *cert. granted*, 115 S.Ct. 714 (Jan. 6, 1995) (Pet. for Cert. at B3) [hereinafter *Irish-American Gay*]. The stated purposes of GLIB for marching in the Veterans' Parade were: (1) to express its members' pride in their dual identities; (2) to demonstrate to the Irish-American, and to the gay, lesbian and bisexual communities the diversity within those respective communities; and (3) to show support for the Irish-American gay, lesbian and bisexual men

¹ Barbra Susan Kay, the co-founder of GLIB, testified at trial that GLIB had no set criteria for membership and that people "can be members of the group as long as they support our stated goals." (Tr. 98.)

and women in New York City ("ILGO" members) who were seeking to participate in the New York St. Patrick's Day Parade. *Irish-American Gay* (Pet. for Cert. at B3).

GLIB formally applied to march in the 1992 parade soon after the group's formation in January of 1992. (Tr. 65-66.) The Veterans denied GLIB's request to march in their Parade, citing "safety reasons and insufficient information regarding [the] social club." (J.A. A60; Tr. 64, 65.) On March 10, 1992, GLIB filed a complaint against the Veterans and various officials of the City of Boston, pleading a number of claims, with a principal allegation that the Veterans were state actors. (J.A. A2.) On March 11, 1992, the Suffolk Superior Court issued the requested restraining order forbidding the Veterans from excluding GLIB from the 1992 Parade. (J.A. A2.) On March 15, 1992, GLIB marched in the Veterans' 1992 St. Patrick's Day/Evacuation Day Parade. *Irish-American Gay* (Pet. for Cert. at B3).

On December 23, 1992, the Veterans obtained a permit from the City of Boston for their annual Parade to be held on March 14, 1993. (Ex. 13; Tr. 176.) In early January 1993, GLIB again requested to participate as a unit in the upcoming Parade. (Ex. 44; Tr. 176.) The Veterans again refused to admit the group, (Ex. 42; Tr. 176), asserting that the decision "to not permit any groups with any sexual themes to march was merely a formalization of the fact that [the Veterans Council] has a traditional parade expressing its religious and social values." (J.A. A49; Tr. 176.)

On February 2, 1993, GLIB amended its still-pending 1992 complaint against the Veterans and the City of Boston to seek declaratory and injunctive relief concerning the 1993 Parade. (J.A. A5-A14.) The Amended Complaint added the allegation that the Veterans violated the public accommodation law, and it retained the allegation that the Veterans had unlawfully excluded GLIB from participating in the Veterans' 1992 and 1993 St. Patrick's Day/Evacuation Day Parades in South Boston, in violation of the First and Fourteenth Amendments to the United States Constitution, and Articles 1 and 16 of the Massachusetts Declaration of Rights, in that the exclusion of GLIB constituted state action. (J.A. A12.)

On February 22, 1993, the Superior Court granted GLIB a preliminary injunction compelling the Veterans to allow GLIB to march in the 1993 Parade. (J.A. A2.) The preliminary injunction was affirmed on the Veterans' appeal to the Massachusetts Appeals Court on March 1, 1993. (Pet. for Cert. at B5.) On March 3, 1993, relief was sought and denied by the Supreme Judicial Court. The Veterans filed an action seeking relief in federal court on March 9, 1993. The federal court abstained and dismissed the action on March 11, 1993. *South Boston Allied War Veterans Council v. Zobel*, 830 F. Supp. 643 (D. Mass. 1993).

GLIB marched under court order in the Veterans' 1993 Parade. (See Ex. 84; Tr. 176.)

On April 16, 1993, the Veterans filed an Answer to GLIB's Amended Complaint in Suffolk Superior Court, and cross claimed against the City of Boston, claiming an infringement of their First Amendment rights pursuant to 42 U.S.C. § 1983. (See Pet. for Cert. at B23) ("The Veterans argue that their Parade is a form of speech protected by the First Amendment via the Fourteenth Amendment, and that their speech will be effectively diluted or distorted if they are required to include GLIB in their Parade.")

In November of 1993, the Superior Court conducted a four-day bench trial. The Veterans again asserted their First Amendment rights as defenses to GLIB's claims, contending that the First Amendment precluded the state from applying the public accommodation statute to the 1993 Parade, (Tr. 528), and, further, that the Parade ~~did~~ not constitute a public accommodation under Massachusetts law. (J.A. A69-A71.) The Veterans also asserted that the city had infringed on their First Amendment rights. (See, e.g., J.A. A69-A75.)

On December 15, 1993, the Superior Court issued its Judgment. It found no state action and dismissed all claims against the City of Boston. (Pet. for Cert. at B14.) The trial judge further found that the Veterans "acted as a private party," *id.* at B22, and consequently dismissed GLIB's constitutional claims against them. *Id.* He found that the Veterans did not generally inquire into the specific messages of the groups which

applied to march, had no written standards or procedures for selecting participants, and were not selective in choosing the diverse groups which participated in the Parade. *Id.* at B6-B9. Citing “the lack of genuine selectivity in choosing participants and sponsors,” *id.* at B6, the court found that the Parade is a public event, *id.*, with no specific expressive purpose. *Id.* at B25. (“Given the Veterans’ lack of selectivity in choosing participants and failure to circumscribe marchers’ messages, it is impossible to discern any specific expressive purpose entitling the Parade to protection under the First Amendment.”)

In disposing of the Veterans’ First Amendment claims, the trial court found that the Veterans, in their Parade, espoused a myriad of themes, values and messages. *Id.* at B24. The trial court also found, “that GLIB would be excluded because of its values and its message, i.e., its members’ sexual orientation”, *id.* at B4 n.5, and, “[t]he evidence establishes that GLIB was excluded from the Parade on account of its members’ sexual orientation.” *Id.* at B4. The trial court also found that the Parade constitutes a public accommodation under Massachusetts law and ruled that “the Veterans’ exclusion of GLIB based on the sexual orientation of its members violates the public accommodation statute.” *Id.* at B9.

The trial court stated in summation: “History does not record that St. Patrick limited his ministry to heterosexuals or that General Washington’s soldiers were all straight. Inclusiveness should be the hallmark of their Parade.” *Id.* at B28. The Veterans were “permanently enjoined from preventing plaintiff GLIB from participating in the St. Patricks’/Evacuation Day Parade because of the group members’ sexual orientation.” The court “further ORDERED that the defendant Council shall allow plaintiff GLIB to participate in the parade in the same manner and under the same terms and conditions applicable to all other participants in the parade.” *Id.* at B28-B29.

On February 16, 1994, the Veterans appealed the Superior Court’s decision to the Massachusetts Supreme Judicial Court and were granted direct appellate review. The Veterans argued that the Parade constituted expressive activity protected by the First Amendment, asserting their rights to free speech, expressive

association, and freedom from being compelled to communicate or foster views in which the Veterans did not believe. The Veterans further argued that the public accommodation statute was constitutionally invalid as applied and facially vague and overbroad. *Irish-American Gay, Lesbian & Bisexual Group of Boston v. City of Boston*, 418 Mass. 238, 248-49, 636 N.E.2d 1293, 1298-99 (Mass. 1994), *cert. granted*, 115 S. Ct. 714 (Jan. 6, 1995).

On March 11, 1994, the Supreme Judicial Court issued an order affirming the Superior Court's decision, and noted that written opinions would follow. (J.A. A1.) On March 14, 1994, the Veterans filed an application for Stay of the Orders of the Supreme Judicial Court and Superior Court before this Court. The Stay was denied (Souter, J.). Consequently, the Veterans cancelled their 1994 Parade.

On July 11, 1994, the Supreme Judicial Court issued its opinion. *Irish-American Gay*, 418 Mass. 238, 636 N.E.2d 1293 (1994).

Applying a "clearly erroneous" standard, *id.* at 242, 248, 250, 636 N.E.2d at 1295, 1298, 1299, the Supreme Judicial Court upheld the trial court's findings of fact, and rejected the Veterans' First Amendment claims:

[W]e need not decide whether the free speech rights or the expressive association right, or both, might be implicated by the factual situation asserted by the defendants. This is so because, as the judge found, it is "impossible to discern any specific expressive purpose entitling the Parade to protection under the First Amendment."

Id. at 249, 636 N.E.2d at 1299.

The Supreme Judicial Court also rejected the Veterans' claim that requiring the inclusion of GLIB in the Parade would force the Veterans to promote a message they did not endorse. *Id.* at 250 n.19, 636 N.E.2d at 1299-1300 n.19. The Supreme Judicial Court affirmed the trial court's ruling that the Parade was a public accommodation and stated: "[T]he burden was on the [Veterans] to demonstrate that they were exercising

their First Amendment rights and as a result were entitled to exemption from the public accommodation laws." *Id.* The Supreme Judicial Court rejected the Veterans' attacks on the statute. *Id.* at 251-52, 636 N.E.2d at 1300-01.

In dissent, Justice Nolan wrote: "One must strain to recall or even imagine such an obvious violation of the revered right to free speech." *Id.* at 253, 636 N.E.2d at 1301 (Nolan, J. dissenting). Citing *Wooley v. Maynard*, 430 U. S. 705 (1977), Justice Nolan stated, "regardless of whether the parade has one message, ten messages, or no message at all, if GLIB's particular message is not in the parade, it cannot constitutionally be forced on the Veterans Council." *Id.* at 257, 636 N.E.2d at 1303. The dissent found that "[t]he judge's order clearly violated the Veterans Council's freedom of speech," *id.*, and expressive association, *id.* at 258-59, 636 N.E.2d at 1303-04; and that the trial judge's finding that the Veterans discriminated on the basis of GLIB's members sexual preference was clearly erroneous. *Id.* at 260, 636 N.E.2d at 1304.

On July 25, 1994, the Veterans filed a Petition for Rehearing with the Supreme Judicial Court (J.A. A1). On July 26, 1994, the Supreme Judicial Court denied that Petition. (J.A. A1.)²

The Veterans filed a Petition for Writ of Certiorari on October 24, 1994, and the writ was granted on January 6, 1995.

² In a separate but related series of events, on April 20, 1994, the Veterans applied to the Boston Transportation Department for a permit to hold a St. Patrick's Day Parade on March 19, 1995. *South Boston Allied War Veterans Council v. City of Boston*, No. 94-11402-MLW, — F. Supp. — (D. Mass. January 17, 1995) (1995 WL 40641), slip op. at 15. The application indicated that the Veterans added a theme to the 1995 parade: "To commemorate the support by the people of South Boston who supported the Veterans rejection of judicially-imposed messages on the parade of Sunday, March 20, 1994." *Id.* at 16. The City of Boston declined to act on the Veterans' request, and indicated that unless the Veterans agreed to comply with the Superior Court's permanent injunction, and include GLIB in the 1995 Parade, it would not issue the permit. *Id.* On July 12, 1994, the Veterans filed an action against the City of Boston in the United States District Court for the District of Massachusetts. *Id.*

On January 17, 1995, the district court held that the Veterans' protest theme represents a "material change in the controlling facts," providing "the 1995 Parade with a discernible expressive purpose that the courts of the Commonwealth found to be lacking with regard to the 1993 Parade." *Id.* at 43. Relying on the inclusion of the protest theme in the 1995 Parade, the district court declared, "The Veterans have now established that the 1995 parade will involve the exercise of their First Amendment rights to associate for expressive purposes and to free speech." *Id.* at 43-44. The district court found itself estopped by the SJC's decision from ruling on the merits of the Veterans' forced speech claim, but noted that "[t]he Supreme Court has the authority to review and, if appropriate, reverse the decision of the Supreme Judicial Court." *Id.* at 68-69.

SUMMARY OF ARGUMENT

This case involves the most straightforward of constitutional claims: that the organizers of a private parade may define and express their own messages, free of government interference, and protected from the compulsion to express messages they choose not to communicate.

This Court should state in clear terms that parades, like books and protest marches, are a form of speech *per se*, deserving of First Amendment protection from any abridgement, intrusion or content-based evaluation by the state, subject to the usual exceptions such as obscenity. The history of this case demonstrates that any alternative holding would subject all parades to content-based evaluations and possible government intrusion.

The Supreme Judicial Court applied a "clearly erroneous" standard to the lower court's factual findings, when this Court has clearly mandated an independent review of the record by appellate courts considering First Amendment claims. Using this standard, the Supreme Judicial Court has incorrectly affirmed the trial court's finding that the Parade lacked focus, and that the protections of the First Amendment attach only to "properly" focused speech. Taken together, these actions have resulted in the denial of the Veterans' First Amendment rights, and intrusive government regulation of their speech.

Far worse, the Veterans have been compelled to convey through their Parade a message they opposed. The Superior Court held that the Veterans violated the Massachusetts public accommodation law, since the Veterans excluded GLIB "because of its values and its message, i.e., its members' sexual orientation." After equating sexual orientation with values and a message, the court then issued an injunction forcing the Veterans' Parade to convey a message that the Veterans had chosen not to communicate. "If there is any fixed star in our constitutional constellation, it is that no official high or petty can prescribe what shall be orthodox in politics, nationalism,

religion or other matters of opinion or force citizens to confess by word or act their faith therein." *West Virginia Bd. of Educ. v. Barnette*, 319 U.S. 624, 642 (1943).

At the same time, the Veterans' right to associate for expressive purposes has been violated. The interference by the state in the Parade is particularly burdensome to the Veterans Council since not only is the Parade the Veterans' speech, it is their principal expressive activity. As a result, the Veterans alone are constitutionally permitted to determine the composition and content of this speech. The Commonwealth's interest in preventing discrimination in places of public accommodation is not implicated by the exclusion of GLIB, since the Veterans do not discriminate against homosexuals in admittance of participants to the Parade. Nor can the Commonwealth's interest support compelling speech.

The decisions of the Massachusetts courts in this case have led directly to two grave harms that the First Amendment was enacted to prevent: in 1992 and 1993, the Veterans' traditional message was distorted by the state's forced inclusion of GLIB; in 1994 the parade was cancelled so as to prevent a continuance of this unconstitutional distortion.

Now that the Supreme Judicial Court has applied the Massachusetts public accommodation law to protected speech such as the Veterans' Parade, and has construed these laws to require not only inclusion of persons but inclusion of their messages as well, it is clear that these laws are unconstitutionally overbroad in violation of the First and Fourteenth Amendments to the U.S. Constitution.

When the trial judge and the Supreme Judicial Court saw the first color guard, and heard the first strains of patriotic and cultural music captured in the videotape of the Veterans' Parade, their inquiry into the content of the Parade should have ended.

ARGUMENT

I. THE VETERANS' PARADE IS THEIR EXPRESSION, THE CONTENT OF WHICH IS PROTECTED BY THE FIRST AMENDMENT AGAINST GOVERNMENT CONTROL.

In the Massachusetts decision now before this Court, the dissent wrote:

Today will be regarded as a sad and frustrating day in the history of the First Amendment. Today, a majority of this court upholds, and thereby endorses, a trial judge's flagrant violation of the free speech rights of citizens of this Commonwealth. The majority acquiesces in a judge's order instructing a private group that if it wishes to express itself at all, it must include in its expression a particular idea, one with which the group does not agree. One must strain to recall or even imagine such an obvious violation of the revered rights to free speech.

418 Mass. at 238, 636 N.E.2d at 1301 (Nolan, J., dissenting).

A. *A Parade Is Inherently Expressive — Speech Per Se.*

"A parade is, by its nature, a pristine form of speech." *New York County Board of Ancient Order of Hibernians v. Dinkins*, 814 F. Supp. 358, 366 (S.D.N.Y. 1993). See *Cox v. New Hampshire*, 312 U.S. 569 (1941); *Gregory v. City of Chicago*, 394 U.S. 111 (1969); *Invisible Empire of the Knights of the Ku Klux Klan v. Mayor of Thurmont*, 700 F. Supp. 281, 286-97 (D.Md. 1988); cf. *Shuttlesworth v. Birmingham*, 394 U.S. 147, 152 (1969). "Every parade is designed to convey a message. As such, a parade organized by a private sponsor is the quintessential exercise of the First Amendment right of freedom of expression." *Dinkins*, 814 F. Supp. at 366.¹

¹ *The Oxford English Dictionary* (OED) gives as the third definition of the noun "parade" (after "show," "display," and "assembling or mustering of troops"): "A march or procession; esp. In U.S., a procession organized on a grand scale, in support of some political object." (Emphasis in original.) OED s.v. "Parade" *sb.*, 1.3. The definitions of the verb to "parade," except the purely military sense of

The Veterans' St. Patrick's Day Parade has historically and consistently celebrated the Veterans' religious and social values. (J.A. A49; Tr. 176.) The Veterans could have written a book promoting their values, or staged a play, or perhaps circulated pamphlets, and each of those media would have afforded their speech First Amendment protection. The Veterans chose, instead, to organize and conduct their Parade on a street, a quintessential public forum.⁴ In deciding what messages to include in their Parade, it is well settled, "[t]he First Amendment mandates that we presume that speakers, not the government, know best both what they want to say and how they want to say it." *Riley v. National Fed'n of the Blind*, 487 U.S. 781, 790-91 (1988). "The First Amendment protects [the Petitioners'] right not only to advocate their cause, but also to select what they believe to be the most effective means for so doing." *Meyer v. Grant*, 486 U.S. 414, 424 (1988). The very purpose of the First Amendment is to foreclose public authorit[ies] from assuming a guardianship of the public mind. . . ." *Thomas v. Collins*, 323 U.S. 516, 545 (1945).

assembling the troops for inspection, all include the idea of showing off. To parade is to march or walk, "esp. For the sake of 'showing off.'" OED s.v. "Parade" vb. I.2-6. There is thus by definition an expressive element even in the most festive and least political of "parades."

⁴ It is well-settled that public places "historically associated with the free exercise of expressive activities, such as streets, sidewalks, and parks, are considered . . . public forums" for such expressive activity. *United States v. Grace*, 461 U.S. 171, 177 (1983); see *Perry Educ. Ass'n v. Perry Local Educators' Ass'n*, 460 U.S. 37, 45 (1983), citing *Hague v. Committee for Indus. Org.*, 397 U.S. 496, 515 (1939). In *Heffron v. International Soc'y for Krishna Consciousness*, 452 U.S. 640 (1981), this Court stated, in discussing time, place and manner restrictions: "A major criterion . . . is that the restriction 'may not be based upon either content or subject matter of speech.'" *Id.* at 648, quoting *Consolidated Edison Co. v. Public Serv. Comm'n*, 447 U.S. 530, 536 (1980). The Massachusetts courts flagrantly violated this major criterion, examining the content of, then imposing a message on, the Veterans' Parade.

For while a municipality may constitutionally impose reasonable time, place and manner regulations on the use of the streets and sidewalks for First Amendment purposes... and may even forbid altogether such use of some of its facilities . . . what a municipality may not do under the First and Fourteenth Amendment, is to discriminate in the regulation of expression on the basis of the content of that expression . . . Above all else, the First Amendment means that government has no power to restrict expression because of its message, its ideas, its subject matter, or its content.

The Third Circuit in *Tacynec v. City Philadelphia*, 687 F. 2d 793, 796 (1982), in deciding whether the exclusion of a marching band from a city-run parade was a reasonable restriction, noted: "[T]he Supreme Court has made it clear that '[e]ntertainment, as well as political and ideological speech, is protected; motion pictures, programs broadcast by radio and television, and live entertainment, such as musicals and dramatic works, fall within the First Amendment guarantee.'" (citations omitted). *Tacynec* also found that the marching band's performances were "a form of cultural expression." *Id.* at 796.

Parades organized by private sponsors, containing a variety of participants and themes, have been accorded constitutional protection by lower courts. *See, e.g., Long Beach Lesbian-Gay Pride, Inc. v. City of Long Beach*, 17 Cal.Rptr.2d 861, 865-67 (Cal. Ct. App. 1993) (festive parades with cars, floats, and pedestrians commemorating homosexual rights movement and celebrating participants' pride in their sexual orientation, entitled to constitutional protection); *New York County Bd. of Ancient Order of Hibernians v. Dinkins*, 814 F. Supp. 358, 361-63 (S.D.N.Y. 1993) (celebratory parade with over 150,000 marchers, designed to honor St. Patrick, entitled to constitutional protection.) *See also Gregory v. City of Chicago*, 394 U.S. 111, 112 (1969) (Marching and parading, "if peaceful and orderly, falls well within the sphere of conduct protected by the First Amendment.").

The Massachusetts courts erred by attempting to determine whether the message or messages of the Veterans' Parade were expressive enough to constitute speech or expressive activity protected by the First Amendment. Once it was acknowledged that the parade was a lawful celebration attempting to express something, no further inquiries into content should have been made. To examine the content of speech for quality or harmony or clarity is to apply a content-based standard, which is impermissible. *See Consolidated Edison*, 447 U.S. at 530 (1980).

(footnote 4 cont'd) *Hudgens v. National Labor Relations Board*, 425 U.S. 507, 520 (1976), citing *Police Dept. of Chicago v. Mosley*, 408 U.S. 92, 95 (1971); *see Boos v. Barry*, 485 U.S. 312 (1988); *Ward v. Rock Against Racism*, 491 U.S. 781 (1989).

1. The Parade Has a Theme and Clear Messages Which Are Selected by the Veterans.

The St. Patrick's Day/Evacuation Day Parade is in its totality a celebration of the Veterans' religious and social values. (J.A. A49.) In addition to entertainment, the Parade is replete with unmistakable political, cultural, religious, and military messages and themes — all selected by the Veterans, and identified by the trial court as "interests and viewpoints" (Pet. for Cert. at B7.)⁵ See *Riley*, 487 U.S. at 796 ("Thus where, as here, the component parts of a single speech are inextricably intertwined, we cannot parcel out the speech, applying one test to one phrase and another test to another phrase. Such an endeavor would be both artificial and impractical. Therefore, we apply our test for fully protected expression.")

Contrary to the findings of the trial court, the Veterans were selective in whom they allowed to march. Participants are sent an application form which asks them to explain the nature of the group seeking to march. (Ex. 4; Tr. 176.) The uncontroverted trial testimony was that between 90% and 95% of all participants were repeat participants. (J.A. A93.) Mr. Hurley testified, with so many repeat participants, "[y]ou don't have to go back every year for one group that has been accepted." *Id.* New applications are evaluated by the Council and voted individually on the basis of each member's beliefs. (J.A. A93; Tr. 292, 432, 433.) "We're all individuals. We have one vote." (J.A. A93.)

⁵ A videotape of the 1993 Parade reflects the following: Color Guards from various Veterans Posts; Irish Flags, American Flags, Flags asking viewers to Remember Our POWs; "South Boston Against Drugs" float; Senate President William Bulger with his Irish shillelagh; Boston Police Bagpipe Band with sign: "Boston Police, Pipes and Drums, Gaelic Column"; Boston Gaelic Fire Brigade Fife & Drum; Flags, banners and trucks bedecked with shamrocks; Miss Ice-O-Rama; Miss South Boston; politicians wearing carnations, tams and green scarves; Baptist Bible Trolley; a banner declaring "Christ, the Way, the Truth, and the Life"; a huge Irish leprechaun float; McGruff the Dog with a sign, "Take a Bite Out of Crime"; Princemen Singing Choir; NORAD; "England out of Ireland" sign; flag saying "Britain's Border — Berlin Wall"; Bishop St. Patrick marching; the acrobatic cycling Murrays wearing kelly green shirts and white hats with shamrocks on them; bands playing traditional Irish songs: *An Irish Lullaby*, *Four Green Fields*, *The Rising of the Moon*, *The Rakes of Marlow*, *The Minstrel Boy*; and one band playing, *Southie Is My Home Town*. (Ex. 84; Tr. 176.)

To ensure the traditional content of the Parade, the Veterans excluded certain groups from marching and circumscribed the messages of others. (J.A. A79, A86-A88, A91-A93.) Contrary to the findings of the trial court, the Veterans were selective in whom they allowed to march. Petitioner John J. Hurley repeatedly stated at trial that groups were excluded "because they were not going with our traditional values and they were sending out a message that we felt we did not want our families to see." (J.A. A87-A88; *see also* Tr. 320.) When asked how GLIB's participation was denied, Hurley testified it was by unanimous vote of the Council. (J.A. A86.) The Veterans at one time or another have excluded, not only GLIB, but also ROAR (an anti-busing group), the Ku Klux Klan, and a truck carrying anti-homosexual messages. They have also circumscribed the messages of Mass. Citizens for Life (a pro-life float) and NORaid (Northern Irish Aid group). (J.A. A79, A86-A88, A91-A93.) John J. Hurley testified that there had been continual discussion amongst the Veterans as to whether to admit groups that could be characterized as controversial. (J.A. A103-A104.) Despite this record of control and exclusivity, the Supreme Judicial Court found these exclusions and circumscription of messages to be of "no legal relevance." *Irish-American Gay*, 418 Mass. 244 n.10, 636 N.E.2d at 1296 n.10. The Supreme Judicial Court glossed over these facts and concluded: "The findings of the judge suggest that virtually any member or group drawn from the public may apply or pay to enter the parade." *Id.* at 247 n.13, 636 N.E.2d at 1298 n.13.

The uncontroverted trial testimony of various witnesses demonstrates the error of the trial judge's characterization. A Deputy Superintendent of the Boston Police Department testified that the police would try to evict any person or group showing up and marching without the Veterans' permission. (J.A. A79.)⁶ In a Parade consisting of up to 10,000 marchers, (Pet.

⁶ Trial testimony of Boston Police Superintendent, Thomas P. Maloney.

Q. And if there is someone in a — let's confine ourselves to the 1992 parade, Superintendent. If a group jumped into the line of march, that was not listed on the roster, and was observed by yourself or your colleagues, what next would happen?

A. We probably would have consulted with the parade organizers to find out if they approved or concurred with this other group into the parade. If they did not, we would try to eject them from the parade route. (J.A. A79.)

for Cert. at B9), the trial court could not point to a single case where a person or group showed up, paid a fee and marched without the Veterans' permission.⁷

Given the testimony at trial, the trial court's conclusion that the Veterans' Parade was an "open recreational event" strains credulity. (Pet. for Cert. at B27.)⁸

2. The First Amendment Protects Speech, Regardless of Whether the Expression is Narrowly Focused, Includes Multiple Messages, or the Speaker is Able to Articulate an Expressive Purpose.

The First Amendment secures the Veterans' right of freedom of speech and guarantees their right to construct a parade of their own liking and to invite those whose messages are in harmony with the Veterans' notion of how the event should be celebrated. *See, e.g., Riley*, 487 U.S. at 790-91. As Justice Nolan argued in his dissent, "[T]he Veterans Council does not need a narrow or distinct theme or message in its parade for it to be protected under the First Amendment." *Irish-American Gay*, 418 Mass. at 256, 636 N.E.2d at 1303. "We have never been in the business of protecting only internally consistent, narrowly focused, politically sensitive speech." *Id.* at 261, 636 N.E.2d at 1305 (Nolan, J., dissenting.) It would be a sad day, indeed, if only those who could deliver a perfect speech, direct a perfect play, produce a perfect movie, or run a "proper" parade, were entitled to protection under the First Amendment. When the trial court stated, and the Supreme Judicial Court affirmed the notion, that "a proper celebration of St. Patrick's

⁷ In fact, out of 10,000 marchers, the Supreme Judicial Court and trial court could point to only six Boston Bruin hockey players who showed up on parade day and marched — and they marched only after receiving approval from Hurley at the request of the Mayor. (Tr. 366; J.A. A104.)

⁸ The Veterans Council is the holder of a parade permit. The city issues parade permits to private groups seeking to run parades. The city issues what are called "Play Street Permits" for "recreational events." (Tr. 184.) If the city believed that the Parade were an "open recreational event" as the Parade was characterized by the trial judge (Pet. for Cert. at B27), it would have issued the Veterans a "Play Street Permit." When asked at trial, "Does any part of the St. Patrick's Day Parade involve activities that require a Play Street Permit?," Assistant Transportation Commissioner William Good answered, "No." (Tr. 185.)

Day and Evacuation Day requires diversity and inclusiveness. . . ,” (Pet. for Cert. at B24), the courts of the Commonwealth of Massachusetts moved its residents one step closer to the creation of a state orthodoxy, an Orwellian society where it would be better for a citizen not to speak at all, rather than run the risk of being punished for stuttering.

The trial court found that the Veterans’ St. Patrick’s Day/ Evacuation Day Parade contained a myriad of themes, values and messages, including patriotic, commercial, political, moral, artistic, religious, athletic, public service, trade union, and eleemosynary themes. *Id.* The trial court pointed out that some of the messages expressed in the Parade contradict those espoused by other participants. In making these content-based findings, the trial court not only evaluated the worthiness of the Parade’s content, and misstated the nature of participation, but also mischaracterized the motives behind corporate sponsors, which were actively solicited by the Veterans. (See e.g., Tr. 350-51.) For example, the trial court pointed to the fact that both Gillette, a nonunion company, and the AFL-CIO participated in the parade. (Pet. for Cert. at B24.) This alleged inconsistency is somewhat strained since Gillette’s involvement was limited to its sponsorship of the South Boston Against Drugs (SOBAD) float. (J.A. A88-A89.)

Because of the stated “lack of selectivity in choosing participants and failure to circumscribe the marchers’ message,” the trial court held that there was no specific expressive purpose entitling the Parade to protection under the First Amendment. (Pet. for Cert. at B25.) The Supreme Judicial Court affirmed, 418 Mass. at 249, 636 N.E.2d at 1299, citing *Clark v. Community for Creative Non-Violence*, 468 U.S. 288, 293 n.5 (1984).

The Supreme Judicial Court cited *Clark* as standing for the proposition: “In order to rely on the protections of the First Amendment for speech or expressive association, the defendants initially had to demonstrate that the parade truly was an exercise of those First Amendment rights. This, the judge found, they did not do.” *Irish-American Gay*, 418 Mass. at 250, 636 N.E.2d at 1299 (citations omitted). *Clark* did not

stand for this proposition. When this Court in *Clark* stated, "it is the obligation of the person desiring to engage in assertedly expressive conduct to demonstrate that the First Amendment even applies," it was referring to questionably expressive activities such as camping and sleeping, which were proscribed, as opposed to clearly expressive activity such as a parade. 468 U.S. at 295-97. Marching and parading "if peaceful and orderly falls well within the sphere of conduct protected by the First Amendment." *Gregory v. City of Chicago*, 394 U.S. 111, 112 (1969). In *Clark* the issue was whether a rule prohibiting sleeping and camping, in an area of the park where such conduct was prohibited, impermissibly infringed on the message of the demonstrators who asserted that sleeping and camping overnight were integral to their speech. This Court found the regulation "clearly [a limitation] on the manner in which the demonstration could be carried out." 468 U.S. at 294. (emphasis added). Nowhere in *Clark* did this Court seek to determine whether the organizers of the demonstration shared common views, or whether the participants were close personal friends, or mere interested strangers. Yet, this is what the Massachusetts courts did.*

In a private parade, it is the sponsors who have the right to determine the message and content, including what is not in harmony with their own message or theme. "The manner and means by which the message is conveyed is also a matter of constitutionally protected free speech." *Dinkins*, 814 F. Supp. at 367; *Meyer v. Grant*, 486 U.S. at 424; *Cohen v. California*, 403 U.S. 15 (1971). Thus, the make-up of the parade, the gravity or the frivolity of its expression, the diversity of the participants, the messages, the parade's focus or lack of focus are all aspects of a constitutionally protected right to speak as one likes. If the Supreme Judicial Court's decision stands, judges would be empowered to determine whether expressive activities are sufficiently "focused," "proper," or "inclusive"

*The Massachusetts courts also cited *United States v. O'Brien*, 391 U.S. 367 (1968), which involved conduct which was specifically proscribed by federal law. Even in *O'Brien*, this Court assumed that the communicative element of burning a draft registration card was protected expression, whereas the Massachusetts courts held that the Veterans' Parade was neither speech nor expressive conduct. *Irish-American Gay*, 418 Mass. at 249, 636 N.E.2d at 1299.

to merit First Amendment protection. Such a content-based examination is impermissible, *see Consolidated Edison Co. v. Public Serv. Comm'n*, 447 U.S. at 536, and will inevitably lead to self-imposed censorship. *City of Lakewood v. Plain Dealer Publishing Co.*, 486 U.S. 750, 757 (1988); *Southeastern Promotions Ltd. v. Conrad*, 420 U.S. 546, 554 (1975), citing *Cantwell v. Connecticut*, 310 U.S. 296, 305 (1940).

The trial court's view that any parade with a variety of messages cannot acquire the protection of the First Amendment creates a dangerous new precedent for reviewing traditional First Amendment activities. The trial court's analysis, affirmed by the Massachusetts Supreme Judicial Court, would limit constitutional protection to monothematic parades, such as Pro-Life, Anti-Nuclear and Gay Rights. It would remove protection from groups like the Veterans seeking to celebrate their various traditional values.¹⁰

B. Appellate Review of Cases Involving First Amendment Claims Requires Careful Scrutiny of the Record as a Whole, and Not Deference to Lower Courts.

The trial court found that the Veterans' parade lacked a specific expressive purpose and thus was not entitled to protection under the First Amendment to the United States Constitution. (Pet. for Cert. at B25.) In its analysis of the Veterans' First Amendment claims on appeal, the Supreme Judicial Court deferred to the trial court's findings of fact insofar as they were not clearly erroneous. *Irish-American Gay*, 418 Mass. at 242, 248, 250, 636 N.E.2d at 1295, 1298, 1299. The Supreme Judicial Court's application of this standard ignores this Court's mandate that in cases raising First Amendment issues, "an appellate court has an obligation to 'make an independent examination of the whole record' in order to make sure that

¹⁰ Ironically, only when the veterans adopted a protest theme for their 1995 Parade did the federal court in Boston allow them to control the content of their Parade as an exercise of their First Amendment right of expression. *South Boston Allied War Veterans Council v. City of Boston*, No. 94-11402-MLW (January 17, 1995)(D. Mass.) But why should it be necessary to have a political demonstration in order to benefit from the First Amendment? The great irony, of course, is that with the goal of being "inclusive," the courts have fostered protest and divisiveness.

'the judgment does not constitute a forbidden intrusion on the field of free expression.'" *Bose Corp. v. Consumers Union*, 466 U.S. 485, 499 (1984) quoting *New York Times v. Sullivan*, 376 U.S. 254, 284-86 (1964); see also *Edwards v. South Carolina*, 372 U.S. 227, 235 (1963); *Pennekamp v. Florida*, 328 U.S. 331, 335 (1946).

No independent review of the record such as required by *New York Times* or *Bose* was undertaken by the Supreme Judicial Court. After a recitation of the facts found by the trial court, including the finding that "it is impossible to discern any specific expressive purpose entitling the parade to protection under the First Amendment," 418 Mass at 249, 636 N.E.2d at 1299, the Supreme Judicial Court affirmed as follows: "[t]he defendants failed to demonstrate and, on our review of the record, we could not conclude that the findings of the judge were clearly erroneous." *Id.* at 250, 636 N.E.2d at 1299.

Rather than conduct an "independent constitutional judgment on the facts of case as to whether the material involved is constitutionally protected," *Jacobellis v. Ohio*, 378 U.S. 184, 190 (1964), the Supreme Judicial Court refused to go beyond the lower court's findings on the First Amendment issue. Although the Supreme Judicial Court did not make the independent review required by the Constitution, this Court should conduct its own review of the record, rather than remand to the Supreme Judicial Court. *Bose Corp. v. Consumers Union of the United States*, 466 U.S. 485, 499 (1984).

In the absence of a ruling from this Court that parades organized by a private sponsor are categorically expressive in nature, courts across this nation will have to examine every parade to determine which is and which is not expressive enough to be entitled to constitutional protection. The constitution would mandate such an examination, see *Jacobellis v. Ohio*, 378 U.S. 184, 187-188 (1964), because expressive activity requires an individualized, fact-specific inquiry, see *Roth v. United States*, 354 U.S. 476, 496-97 (1957) (Harlan, J., concurring in part and dissenting in part) ("Every communication has an individuality and 'value' of its own . . . every [suppression] raises an individual constitutional problem.")

C. *The Veterans Cannot Be Forced to Include Someone Else's Message In Their Parade and They Have a First Amendment Right to Remain Silent on the Subject of Homosexuality.*

The trial judge found:

GLIB was formed to march in the annual St. Patrick's Day-Evacuation Day Parade held in South Boston. GLIB's purposes are to express its members' pride in their dual identities as Irish or Irish-American persons who are also homosexual or bisexual, to demonstrate to the Irish-American community and to the gay, lesbian, and bisexual community the diversity within those respective communities, and to show support for the Irish-American homosexual and bisexual men and women in New York City who were seeking to participate in that city's St. Patrick's Day Parade.

Irish-American Gay, 418 Mass. 238, 241-42, 636 N.E.2d at 1295.

The Commonwealth of Massachusetts then ordered the Veterans to allow GLIB to march in their parade "in the same manner and under the same terms and conditions applicable to all other participants in the parade." (Pet. for Cert. at B29.) This meant, of course, that the Veterans were ordered to allow GLIB to march under its own banner. (Ex. 113; Tr. 482.) Simply carrying a banner which identified their group would be enough to convey GLIB's message to the parade viewers. *See U.S. v. Grace*, 461 U.S. 171, 176 (1983).

It is difficult to imagine anyone of sufficient age and intellect who would not understand the message GLIB sought to convey. As the trial court found, GLIB clearly had an expressive purpose which they intended to communicate through their participation in the parade. Indeed, as the photo from the Boston Globe indicates, GLIB was successful in using the Veterans' Parade to promulgate its message. (Ex. 113; Tr. 482.) The

Parade, instead of being a source of pride and accomplishment to the Veterans, became a source of anger and embarrassment.

Throughout the years this Court has consistently upheld a private party's First Amendment right to reject compelled expression. *West Virginia Bd. of Educ. v. Barnette*, 319 U.S. 624 (1943) (invalidating compulsory flag salute statute); *Miami Herald Publishing Co. v. Tornillo*, 418 U.S. 241 (1974) (invalidating a statute forcing newspapers to print candidate's replies to editorials, as an impermissible burden on "editorial control and judgment"); *Wooley v. Maynard*, 430 U.S. 705 (1977) (invalidating penalty for refusal to display "Live Free or Die" motto on license plate); *Pacific Gas & Elec. Co. v. Public Utilities Comm'n*, 475 U.S. 1 (1986) (plurality opinion) (invalidating forced inclusion of consumer group's newsletter in utility's mailings to customers). These rulings are based on the premise that freedom of speech "necessarily compris[es] the decision both what to say and what not to say." *Riley v. National Fed'n of the Blind*, 487 U.S. 781, 797 (1988). This Court has "presume[d] that speakers, not the government, know best both what they want to say and how to say it. . . . To this end, the government, even with the purest of motives, may not substitute its judgment as to how best to speak. . . ." *Id.* at 791.

The government of Massachusetts, in its desire to achieve diversity, may not compel the Veterans to endorse a "gay pride" message, a message that is not their own. The Veterans have a First Amendment right "to refuse to foster . . . an idea they find morally objectionable." *Wooley*, 430 U.S. at 715. By requiring the inclusion of GLIB's message in the Veterans' Parade over the objection of the Veterans Council, the courts of Massachusetts are "[m]andating speech [the petitioners] would not otherwise make" and are "necessarily alter[ing] the content of the speech." *Riley*, 487 U.S. at 782.

"[R]egardless of whether the parade has one message, ten messages, or no message at all, if GLIB's particular message is not in the parade, it cannot constitutionally be forced on the Veterans' Council." *Irish-American Gay*, 418 Mass. at 257, 636 N.E.2d at 1303 (Nolan, J., dissenting); *Gay Veterans Assoc. v. American Legion*, 621 F.Supp. 1510 (S.D.N.Y.

1985); *Sanders v. United States*, 518 F.Supp. 728 (D.D.C. 1981), *aff'd. without opinion*, 679 F.2d 262 (D.C. Cir. 1982); (A physical intrusion into another event for the purpose of interjecting one's own convictions or beliefs is by definition an interference, regardless of how insubstantial or insignificant it might appear.); *Redgrave v. Boston Symphony Orchestra*, 855 F.2d 888, 906 (1st Cir. 1988), *cert. denied*, 488 U.S. 1043 (1988) ("We have been unable to find any case, involving the arts or otherwise, in which a state has been allowed to compel expression.") *Cf. Grayned v. City of Rockford*, 408 U.S. 104, 115 (1972) ("[T]wo parades cannot march on the same street simultaneously, and government may allow only one.")

The Supreme Judicial Court failed to acknowledge the significance of *Wooley* as it relates to the present case. The Supreme Judicial Court's entire analysis was relegated to a mere four sentences in a footnote. It reasoned that since "[t]he private automobile of a New Hampshire resident could not possibly be characterized as a public accommodation," reliance on *Wooley* was improper because the Parade was found to be such a public accommodation. *Irish-American Gay*, 418 Mass. at 250 n.19, 636 N.E.2d at 1299-1300 n.19. Under this analysis owners of restaurants, taverns, supermarkets, or of any area found to be a place of public accommodation, could be forced to place signs proclaiming "Live Free or Die" in full view of their patrons. This would clearly violate the protections of the First Amendment. "[W]here the state's interest is to disseminate an ideology . . . such interest cannot outweigh an individual's First Amendment right to avoid becoming the courier for such a message." *Wooley*, 430 U.S. at 717.

Although the state's concern for an end to discrimination in places of public accommodation is a valid interest, under these facts it cannot abridge the Veterans' secured right of freedom of speech. Here, the method by which the state seeks to implement its interests does not stop at prohibiting discrimination based upon sexual orientation or at securing admission to a public place. Instead, it oversteps that interest and then attempts to mandate dissemination of an ideological message supported by those it seeks to protect.

The Veterans were willing to allow any homosexual or bisexual person to march in the parade, but not under a banner expressing a homosexual/bisexual message. They sought to deny GLIB the opportunity of using the St. Patrick's Day/ Evacuation Day Parade as an instrument to convey its "gay pride" message and its support for ILGO in New York and thus hijack the parade for its own expressive purposes.

The burden on the Veterans' freedom of expression was compounded given the public context in which their Parade is held. *See Lehnert v. Ferris Faculty Ass'n*, 500 U.S. 507, 522 (1991) ("The burden upon freedom of expression is particularly great where, as here, the compelled speech is in a public context.")

Most significantly, the Supreme Judicial Court accepted the trial judge's findings that GLIB was being excluded "because of its values and its message, i.e., its members' sexual orientation". (Pet. for Cert. at B4 n.5.) In the words of the dissent, "overwhelming evidence exists throughout the record which indicates that GLIB was excluded because of its message, and not because of its members' sexual preference." *Irish-American Gay*, 418 Mass. at 260, 636 N.E.2d at 1304 (Nolan, J., dissenting).

Indeed, GLIB's Amended Complaint alleges that Defendants [the Veterans and the City] "refused to allow them to march in the 1993 Parade because of Plaintiffs' sexual orientation and *because of the content of their expression*." (J.A. A11) (emphasis added). As counsel for GLIB said in his opening statement at trial, "We will also show that the thrust of the action by the Veterans and the city is not to make a determination of GLIB as an organization or to criticize GLIB. The thrust of this is to preclude GLIB's message from being heard either in Boston or elsewhere." (Tr. 26-27.)

In his dissent Justice Nolan noted:

There is no evidence in the record that the Veterans Council ever inquired into the sexual preference of any person intending to march in the parade, including the members of GLIB; there is no evidence that the Veterans Council ever excluded any homosexual or bisexual not a member of GLIB; the judge found

that not all members of GLIB are homosexual or bisexual; there is evidence in the record that the Veterans Council would let the members of GLIB march without a banner identifying the group.

418 Mass. at 260 n.4, 636 N.E.2d at 1304 n.4 (Nolan, J., dissenting).

Simply put, the Supreme Judicial Court has failed to differentiate GLIB's message from its members. The Massachusetts courts, in their efforts to achieve "inclusiveness" and "diversity," have ruled that disagreement with a person's message is tantamount to discrimination and may be enjoined. Parade Adjutant Hurley testified, on the contrary, that "the message that we're trying to put out there is the Allied War Veterans Council and John 'Wacko' Hurley have no — none whatsoever — feelings of any nature against the gay/lesbian, male/female, whatever." (J.A. A104-A105.) The Veterans have the right to remain silent on the subject of homosexuality, and cannot be forced by the government to make statements either for or against it.

The trial judge based his findings on what he perceived to be "inconsistent and changing explanations for excluding GLIB" which he found were merely a pretext for exclusion based upon sexual orientation. *Irish-American Gay*, 418 Mass. at 242 n.8, 636 N.E.2d at 1295 n.8. "This is clear error, and may have led to a baseless finding that the Veterans Council discriminated on the basis of GLIB's members sexual preference. . . . It is important to note that each of the reasons for excluding GLIB proffered by the Veterans Council is not discriminatory." *Id.* at 260 & n.5, 636 N.E.2d at 1304-05 & n.5. (Nolan, J., dissenting). GLIB was excluded on their initial application due to safety concerns and insufficient information about the organization. (Ex. 72; Tr. 176.)

The Veterans were not alone in its concern for safety. The Veterans' concerns were validated by the police presence which enveloped GLIB as they made their way along the parade route. (Ex. 84.) Rather than being merely pretextual in nature, the Veterans' public safety concerns were responsible and pru-

dent given the enormous burden of organizing and running a parade of such magnitude. When asked by Chief Marshal Lyons if Barbra Kay, a founding member of GLIB, could guarantee that GLIB would not create a disturbance in the parade, Lyons noted: "She looked straight at me and she said, 'I cannot, but I will guarantee you that I would not do anything.'" (Tr. 261-62.)

GLIB's application to march in the 1993 parade was rejected based on the Veterans' decision to exclude groups with sexual themes as a way to express their religious and social values.¹¹ Their decision was not to allow some sexual themes while excluding others, although they certainly had that right under the First Amendment. The Veterans chose to exclude any and all sexual themes regardless of the message conveyed. They demonstrated their sincerity by excluding a truck carrying anti-homosexual signs from the Parade (J.A. A79), but strangely the Supreme Judicial Court observed: "Assuming this to be true, we perceive no legal relevance of this fact to the findings of the judge or to the conclusion we reach." *Irish-American Gay*, 418 Mass. at 244 n.10, 636 N.E.2d at 1296 n.10.

Perhaps the most troubling conclusion of the trial court was its notion that "[e]xcluding all sexual themes . . . contravenes the First Amendment's prohibition on content-based restrictions" and "is a form of discrimination." (Pet. for Cert. at B4 n.6.) Such a pronouncement is clearly "a flagrantly erroneous statement of law."¹² 418 Mass. at 260, 636 N.E.2d at 1305

¹¹The Veterans' attorney Mr. Darling wrote to GLIB's attorney at the time as follows: "The vote that was recently taken by my client to not permit any group with any sexual themes to march was merely a formalization of the fact that my client has a traditional parade expressing its religious and social values." (J.A. A49; Tr. 176.)

¹²The trial court based its unique interpretation of First Amendment doctrine on *Consolidated Edison Co. v. Public Service Comm'n*, 447 U.S. 530 (1980) and *Loving v. Virginia*, 388 U.S. 1 (1967). In *Consolidated Edison* the state Public Service Commission prohibited the utility from placing inserts in its monthly bills which dealt with subject matter proscribed by the Commission (emphasis added). This Court stated, "[t]he First Amendment's hostility to content-based regulation extends not only to restrictions on particular viewpoints, but also to prohibition of public discussion of an entire topic." *Consolidated Edison*, 447 U.S. at 537. In relying on this language, the trial court failed to take into account the very next sentence which makes it quite clear that "government has no power to restrict expression because of its message, its ideas, its subject matter, or its content." *Id.* (emphasis added). Nothing in *Consolidated Edison* suggests that private parties cannot control the content of their own speech.

(Nolan, J., dissenting). If this was indeed the law under the First Amendment, a group disfavored by a parade sponsor would merely need to couch its message in sexual terms to be admitted into the parade. It takes little imagination to foresee all manner of groups espousing sexual messages seeking inclusion into a parade. The Veterans had rejected the Ku Klux Klan, who had applied to march in the parade. (Ex. 54; Tr. 263, 323-24.) If a group wanted to march that styled itself "White Heterosexual Irish Males" (WHIM) the Veterans would be required to accept them, under the Supreme Judicial Court's precedent. It is no rhetorical exaggeration to call this the beginning of a "parade of horrors."

In *New York County Board of Ancient Order of Hibernians v. Dinkins*, 814 F.Supp. 358, 366 (S.D.N.Y. 1993), the court concluded that the application of a public accommodation statute which required a gay and lesbian group (ILGO) to be included in the New York City St. Patrick's Day Parade violated the parade sponsors' First Amendment rights. The court stated that "the message intended to be conveyed by a parade sponsored by a private organization is to be determined by the parade sponsor and not by the state or city," and that "[the] manner and means by which the message is conveyed is also a matter of constitutionally protected free speech." *Id.* at 367. Here, as in *Dinkins*, "the Parade sponsors have made it abundantly clear that they are unwilling to accept [GLIB] as a separate contingent in the Parade," *id.*, but have been ordered to allow GLIB to participate. The *Dinkins* court stated: "[B]y forcing the inclusion of ILGO in the parade, the Commission sought to dictate how the parade sponsors would express their thoughts. Such activity (telling citizens what they must think

(footnote 12 cont'd) In *Loving*, this Court held that equal application of state miscegenation statutes was racial discrimination. Leaving aside the fact that the case lacked a First Amendment claim, once again it was a governmental regulation that was invalidated.

That the trial court would fail to appreciate the lack of state action as it relates to the Veterans Council is puzzling in light of its analysis precluding liability against the City of Boston. In that part of the opinion the court understood that "the conduct of private parties is beyond the Constitution's scope." (Pet. for Cert. B22.) Given that "[t]he judge found no state action here; certainly private parties may exclude any topic or theme they want from their expression." *Irish-American Gay*, 418 Mass. at 260-61, 636 N.E.2d at 1305 (Nolan, J. dissenting).

and how they must express themselves) is something one would expect from the 'Thought Police' described by George Orwell." 814 F. Supp. at 369.

The Supreme Judicial Court has failed to take into account the Veterans Council's "right to be free from government restrictions that abridge its own rights in order to 'enhance the relative voice' of its opponents." *Pacific Gas & Elec. Co.*, 475 U.S. 1, (1986), quoting *Buckley v. Valeo*, 424 U.S. 1, 49 and n.55 (1976). This Court's previous concern that government enforced access would ultimately limit "the free flow of information and ideas that the First Amendment seeks to promote," *Pacific Gas & Elec. Co.*, 475 U.S. at 14, was prophetic.

This Court has long held, "If there is any star in our constitutional constellation, it is that no official high or petty can prescribe what shall be orthodox in politics, nationalism, religion, or other matters of opinion or force citizens to confess by word or act their faith therein." *West Virginia Bd. of Educ. v. Barnette*, 319 U.S. 624, 642 (1943). The Veterans held this conviction so deeply that in 1994 they cancelled their own Parade rather than succumb to government dictate.

D. *The Constitution Protects the Veterans' Right to Associate for Expressive Purposes.*

The most natural privilege of man, next to the right of acting for himself, is that of combining his exertions with those of his fellow creatures and of acting in common with them. The right of association therefore appears to me almost as inalienable in its nature as the right of personal liberty. No legislator can attack it without impairing the foundations of society.

A. de Tocqueville, 1 *Democracy in America*, 191 (Francis Bowen ed. 1990).

An association, de Tocqueville explained, "consists simply in the public assent which a number of individuals give to

certain doctrines and in the engagement which they contract to promote in a certain manner the spread of those doctrines." *Id.* at 192. Although the right of association was imported from England, he noted, "the exercise of this privilege is now incorporated with the manners and customs of the people. . . [T]he liberty of association has become a necessary guarantee against the tyranny of the majority." *Id.* at 195.

Although the Constitution does not speak plainly of a right to associate for expressive purposes, this Court has recognized that it protects such a freedom for the purpose of engaging in expressive activities protected by the First Amendment. Today, this Court faces the task of further defining how much of a burden the state may impose on an association's expression. *See NAACP v. Alabama*, 357 U.S. 449, 460 (1958) ("It is beyond debate that freedom to engage in association for the advancement of beliefs and ideas is an inseparable aspect of the 'liberty' assured by the Due Process Clause of the Fourteenth Amendment, which embraces freedom of speech.")

1. The Veterans' Council is a Membership Organization and The Parade is Their Expression.

The Veterans have a right to associate for the purposes of organizing, planning, and creating their Parade. It is undisputed that the South Boston Allied War Veterans' Council itself is an expressive association engaged in the organization and running of the Parade.

The Veterans' Council is made up only of select members from associated Veterans' groups. (Tr. 371-72.) Men and women aspiring to be nominated to the Council must first join an affiliated Veterans' group in South Boston, then must work their way up through the ranks of the local affiliates before being appointed or elected to the Council.

GLIB did not seek membership on the Veterans' Council. It is only through membership on the Veterans' Council that individuals may seek to affect the Council's speech. GLIB sought to march with a banner in the Veterans' Council's Parade. (Ex. 113.)

As previously discussed, the Parade is the Veterans' speech. Participants do not determine who will march in the Parade, or where in the line of march they will appear. The Veterans do. Bands and other groups are paid to participate. Parade officials Lyons testified at trial to the many hours' work that it takes to organize a parade. (Tr. 244, 245.) Intuitively, a parade with 10,000 marchers requires an enormous expenditure of time and effort to plan and organize.

Justice Brennan acknowledged in his majority opinion in *Roberts v. United States Jaycees*, 468 U.S. 609, 622 (1984), that the Court had "long understood as implicit in the right to engage in activities protected by the First Amendment a corresponding right to associate with others in pursuit of a wide variety of political, social, economic, educational, religious, and cultural ends", and noted that an "individual's freedom to speak . . . could not be vigorously protected from interference by the State unless a correlative freedom to engage in group effort toward those ends were not also guaranteed." *Id.* The Veterans' Council repeatedly asserted the right to conduct a parade that celebrated their political, social, religious and cultural values. (J.A. A49; A72-A74.)

In *Roberts* this Court noted that "the Minnesota Act does not aim at the suppression of speech, does not distinguish between prohibited and permitted activity on the basis of viewpoint, and does not license enforcement authorities to administer the statute on the basis of such constitutionally impermissible criteria." It further noted that the Jaycees did not "contend that the Act has been applied in this case for the purpose of hampering the organization's ability to express its views." 468 U.S. at 623-24. Only then did this Court go on to find that "even if enforcement of the Act causes some incidental abridgment to the Jaycees' protected speech, that effect is no greater than is necessary to accomplish the state's legitimate purposes." *Id.* at 628. It should be emphasized that the Jaycees organization itself did not claim that their expression would be materially affected by the exclusion of women in the Jaycees organization. By incidental infringement the Court was not referring to the adoption of antithetical messages in the Jaycees'

speech. "There is no basis in the record for concluding that the admission of women as full voting members will impede the organization's ability to engage in these protected activities or to disseminate its preferred views." *Id.* at 627. But this is precisely what the forced inclusion of GLIB in the Veterans' parade does — it inhibits the Veterans' ability to express its preferred religious and social values. It goes beyond inhibiting; it directly alters the message which the Veterans send down the streets in their Parade. Furthermore, in 1994 the Veterans cancelled their Parade rather than be forced to include GLIB's message. This is not an incidental infringement of speech under any test. It is utter destruction of speech.

Justice O'Connor, in her *Roberts* concurrence, emphasized "an association engaged exclusively in protected expression enjoys First Amendment protection of both the content of its message and the choice of its members. Protection of the message itself is judged by the same standards as protection of speech by an individual. . . ." *Id.* at 633. "[A] ban of specific group voices on public affairs violates the most basic guarantee of the First Amendment — that citizens, not the government, control the content of public discussion." *Id.* at 632-34. Finding that the Jaycees were primarily engaged in commercial — rather than expressive — activity, she concurred in the judgment, but said the First Amendment claim failed as a threshold matter because the organization's main goals of training its members in business and promoting the art of solicitation and management were unrelated to expression.

A parade, as a form of speech, falls well outside any standards which would apply to the membership organization, regardless of which threshold standard is used — the *Roberts* majority or the concurrence. The Parade, as the Veterans' expression, is, by the majority standard, "plainly implicated" in the Veterans' pursuit of "a wide variety of . . . social, . . . religious, and cultural ends." 468 U.S. at 622. The Veterans in their Parade are, by the concurrence standard, "predominantly engaged in protected expression." *Id.* at 632-34.

Unlike the Jaycees, the Veterans have no commercial or business purpose. Speech is far from incidental to the Veterans'

purpose in running a parade. The principal expressive activity of the Veterans' Council is the planning, organizing, and execution of their annual Parade — which is not a public free-for-all, but rather a celebration honoring Saint Patrick, patriotism, and, in the words of a parade organizer, “traditional family values.” (Tr. 320.)

Nor is the Veterans' Parade a “social association.” It is the Veterans' speech. Thus, the holding of *Dallas v. Stanglin*, 490 U.S. 19 (1989), that there is no First Amendment protection for the purpose of associating at a dance hall for recreational dancing, is inapposite. The Veterans do not claim any right of social association with parade participants, but assert, rather, the right to plan and organize their expressive activity, their Parade. Organizing a religious, patriotic, and cultural parade is more akin to the concededly protected activity of producing and directing a play than the unprotected activity of social dancing. See fn. 5, *supra*.

When the trial court and the Supreme Judicial Court applied membership cases to the parade, e.g., *Concord Rod & Gun Club v. Massachusetts Comm'n Against Discrimination*, 402 Mass. 716, 720, 524 N.E. 2d 1364 (1988), *Roberts v. Jaycees*, 468 U.S. 609 (1984), the courts improperly drew the inference that the parade itself was a membership organization. It is not. It is the Veterans' expressive activity — their speech. In this case, the Veterans argued repeatedly that their parade was their speech, and that forcing them to carry a message they found objectionable was unconstitutional.

2. The First Amendment Protects The Right of an Expressive Association to Control the Content of Its Own Speech.

An expressive association may not be forced to support ideological causes with which it disagrees. *Roberts*, 464 U.S. 609 (1984); cf. *Abood v. Detroit Board of Education*, 431 U.S. 209 (1977); *Keller v. State Bar of California*, 496 U.S. 1 (1990).

Although the ability under certain circumstances to exclude unwanted members from quasi-commercial or business clubs has been circumscribed in the face of challenges such as *Roberts*, where the state had a compelling interest in banning discrimination in places of public accommodation, the principle is still that the right to expressive association encompasses the right to exclude unwanted and antithetical messages from the association's expression.

3. The State's Interest in Preventing Discrimination In Places of Public Accommodation Is Not Implicated by the Veterans' Parade.

A state's compelling interest in eradicating race and gender discrimination in places of public accommodation may, under certain circumstances, outweigh a club's denial of membership to women and minorities, where business or commercial goals are involved. See, e.g., *New York State Club Ass'n v. New York City*, 487 U.S. 1 (1988); *Rotary International v. Rotary Club of Duarte*, 481 U.S. 537 (1987); *Roberts v. Jaycees*, 464 U.S. 609 (1984). But the Veterans' Parade is their expression, rather than a business or commercial activity.

The Massachusetts courts unconstitutionally applied the state's interest in prohibiting discrimination in places of public accommodation to a membership organization's expression. GLIB members' sexual orientation is different from their proposed expression in the Veterans' Parade. The Veterans seek to exclude the latter. The record makes clear that GLIB was formed for the purpose of making a statement in the St. Patrick's Day Parade. (Pet. for Cert. at B3.) People who supported that cause could join with them under their banner, irrespective of whether they were Irish or homosexual. (Tr. 98.) Further, as Justice Nolan noted in his dissent, "overwhelming evidence exists throughout the record which indicates that GLIB was excluded because of its message, and not because of its members' sexual preference." *Irish-American Gay*, 418 Mass. at 260 n.4, 636 N.E.2d at 1304 n.4 (Nolan, Jr., dissenting).

The compelling state interest behind the Massachusetts public accommodation statute is not burdened by the exclusion of

GLIB and its banner from the Veterans' private Parade. It is not even implicated.

4. Even if the State's Anti-Discrimination Interest Were Implicated, It Cannot Stand Against the Veterans' First Amendment Right to Create Its Own Voice.

Any interest of GLIB in marching in the Veterans' Parade is trumped by the Veterans' First Amendment freedom of speech. GLIB's members are free to march in the parade as individuals in another contingent, like the rest of the participants who, whether homosexual or heterosexual, are free to march but not to promote their sexual and political agenda via the Veterans' Parade.

If they wish to proclaim their homosexuality and Irish heritage as a group, they can hold their own parade (and, if they wish, exclude the Veterans and any other group with a message of religious or moral values with which *they* disagree).

On the other hand, the Veterans' message is distorted if GLIB's message is forced into their Parade. See *Pacific Gas & Elec. Co.*, 475 U.S. at 12 ("[F]orced associations that burden speech are impermissible.") In fact, the Veterans' expression is so burdened that its First Amendment right of expressive association no longer has meaning: either their expression is so distorted by GLIB's inclusion that the traditional message is unrecognizable, (see, e.g., Ex. 113), or else their expression is completely obliterated because the Veterans will simply cancel the parade and their message will never be heard.

II. THE VETERANS' REFUSAL TO INCLUDE THE GAY, LESBIAN AND BISEXUAL MESSAGE WITHIN THE PARADE CANNOT BE DECLARED UNLAWFUL DISCRIMINATION UNDER THE MASSACHUSETTS PUBLIC ACCOMMODATION LAWS BECAUSE THOSE LAWS ARE UNCONSTITUTIONALLY OVERBROAD.

The Veterans' refusal to include the gay, lesbian and bisexual message cannot be declared unlawful under the Massachusetts public accommodation statute, because the statute is uncon-

stitutionally overbroad in violation of the First and Fourteenth Amendments. As authoritatively interpreted by the Supreme Judicial Court, these laws burden nearly all public First Amendment activity with government-specified inclusiveness requirements, criminalizing a substantial amount of protected speech.

The Massachusetts public accommodation law provides both civil and criminal penalties for, *inter alia*, "whoever makes any distinction or restriction on account of" specified categories such as race and sex "relative to . . . the admission of any person to or his treatment in any place of public accommodation." Mass. Gen. L. ch. 272, § 98 (1994). The term "place of public accommodation" is defined to include virtually all places open to the public except churches. ch. 272, § 92A.¹³

The offenses prohibited under Section 98 are not limited to discrimination; they include as well any "distinction" relative to "treatment" of persons. They are not limited to actions of owners or proprietors of public places; they apply to "[w]hoever" makes a distinction on account of specified categories in the treatment of any person in a public place. Thus, any speech in any form by any person in a public place is subject to regulation within the literal scope of Section 98. Speech that makes a distinction on the basis of specified criteria in the treatment of any person is prohibited from public places; speech that makes no distinction, or that distinguishes on the basis of non-specified categories (for example, age) is not so prohibited. *R.A.V. v. City of St. Paul*, 112 S.Ct. 2538, 2549 (1992) ("Selectivity of this sort creates the possibility that the city is seeking to handicap the expression of particular ideas.")

The Massachusetts courts have not substantively limited the unconstitutional reach of Section 98. Massachusetts cases in-

¹³The Superior Court held and the Supreme Judicial Court affirmed that "the Veterans' exclusion of GLIB from the [parade] violates G.L. c. 272, §§ 92A and 98." Neither the Superior Court nor the Supreme Judicial Court found that the Veterans engaged in any speech or activity violative of § 92A. Neither court quoted § 92A's operative provision, which prohibits, *inter alia*, discrimination through advertising and other modes of speech by proprietors of public places. Although the Supreme Judicial Court also stated that "[b]y their terms, G.L. c. 272, §§ 92A and 98 facially do not reach a speech or expression or association protected by the First Amendment," section 92A by its terms regulates the content of such pristine modes of speech as pamphlets, signs, notices and books.

terpeting Section 98 provide no meaningful guidance as to the limits of the words "distinction" or "treatment." The one Supreme Judicial Court case suggesting (in dicta) a limiting interpretation of these terms does so in a vague and meaningless manner, stating that "[a] place of public accommodation . . . has an obligation to treat each member of the public equally, *except for good cause.*" *Smith v. Suburban Restaurants, Inc.*, 374 Mass. 528, 530, 373 N.E.2d 215, 218 (1978) (emphasis added).

Indeed, the decision of the Supreme Judicial Court in this case has only broadened the unconstitutional sweep of the public accommodation laws. As directed above, the Supreme Judicial Court has extended Section 98 to cover inclusion of messages intended to be conveyed by members of specified groups. "This construction fixes the meaning of the statute for this case. The interpretation by the [state's highest court] puts the words into the statute as definitely as if it had been so amended by the legislature." *Winters v. New York*, 333 U.S. 507, 514 (1948).

The public accommodation laws do not distinguish in any way between protected speech and inexpressive activities. Now that the Supreme Judicial Court has interpreted these laws to apply to parades,¹⁴ these laws clearly encompass at least those First Amendment activities which are in any sense public. The Supreme Judicial Court's broad standard for determining what activities are public is thus troubling. In the case at bar, the Supreme Judicial Court simply noted in a footnote that "virtu-

¹⁴ The Massachusetts courts' finding that a parade — a clearly expressive activity — is "a place" arguably adds an unreasonable, unexpected and unusual meaning to the plain meaning of the word "place." See *Conner v. Sakai*, 15 F.3d 1463, 1468-69 (9th Cir. 1993) (Unusual interpretations of plain language may violate Due Process requirements.) Moreover, such a finding flies in the face of the Massachusetts courts' prior limiting constructions of the word "place." *U.S. Jaycees v. Massachusetts Comm'n Against Discrimination*, 391 Mass. 594, 601, 463 N.E.2d 1151, 1155 (1984). ("'Place' is not a technical word. It has no narrowly defined, special meaning aside from its common definition . . . In its primary and general sense, [place] means locality, situation, or site, and is also used to designate an occupied situation or building") (citing *Black's Law Dictionary* 1034 (5th ed.)). See *Welsh v. Boy Scouts of America*, 993 F.2d 1267, 1271-72 & n.4 (7th Cir. 1993) (Massachusetts public accommodation law reaches places, not events.)

ally any member or group drawn from the public may apply or pay to enter the parade." Since few if any rallies, demonstrations, parades, marches or protests occurring on public streets exhibit greater selectivity than the Veterans' parade, nearly all are regulated as to their participants and their messages by the Massachusetts public accommodation law. Those making any distinction relative to the treatment of specified categories of persons will be very effectively chilled by these laws.

The unconstitutionally broad sweep of the public accommodation laws is illustrated quite clearly by the discussion of these laws in the Supreme Judicial Court's holding in *United States Jaycees v. Massachusetts Comm'n Against Discrimination*, 391 Mass. 594, 463 N.E.2d 1151 (1984). There, the Supreme Judicial Court held that "[W]hile the U.S. Jaycees does not constitute a place of public accommodation, the organization may not discriminate on the basis of sex in its admission to, or treatment of any person in a place of public accommodation." *Id.* at 608.

Considerably more troubling is the fact that the statute makes no distinction between public and private activities; it distinguishes only between private and public places. By its terms, Section 98 encompasses purely private activities occurring in a public place, since it states that "whoever" makes a distinction relative to a specified category in the treatment of any person in a public place "shall be punished." Nothing in Massachusetts case law suggests that the Massachusetts courts would not apply Section 98 to private activities. In the case at bar, the Supreme Judicial Court initially appeared to hold that the parade was subject to the public accommodation statute simply because:

[t]he parade occurs on the public streets of South Boston. Nothing in § 92A or any other statute suggests that a boardwalk or other public highway loses its character as a place of public accommodation, resort or amusement, which it gains by operation of that statute, merely because a parade is conducted there.

The Supreme Judicial Court added (in a footnote) an observation that the parade itself was public. The full text of the footnote, however, demonstrates that a lack of public nature would not have been dispositive:

The defendants argue that, by operation of law, issuance of a parade permit closes the streets of the parade route to the public. We do not need to decide whether that is true. The findings of the judge suggest that virtually any member or group drawn from the public may apply or pay to enter the parade.

418 Mass. at 248 n.13, 636 N.E.2d at 1298 n.13. If the Supreme Judicial Court had found that the parade was an entirely private activity, it would next have considered whether the streets remained a "place of public accommodation" during the parade. The controlling fact in application of section 98 is not who or what type of group or activity makes an impermissible distinction, but whether that distinction occurs in a place of public accommodation.¹⁵ Thus, the plain text of the statute, which encompasses all private and all public activities or speech, whether expressive or inexpressive, is in no way limited by the holdings of the Supreme Judicial Court in this or any other case.¹⁶ The Supreme Judicial Court stated that it would not interpret the public accommodation laws "so that they could reach and unconstitutionally infringe on speech," but then added in a footnote, "We leave

¹⁵ At least one Massachusetts court has found that a private person may have violated rights guaranteed under the Massachusetts public accommodation law. In *Commonwealth v. Stephens*, 25 Mass. App. Ct. 117, 123, 515 N.E.2d 606, 610 (Mass. App. Ct. 1987), which concerned a prosecution of an individual for wilful violation of the rights of another under G.L. c. 265, § 37, the appellate court upheld a jury instruction stating in part that "state law guarantees that all persons have the right to use public streets and sidewalks free from any discrimination or restriction on account of race, color or national origin (see G.L. c. 272, § 92A and § 98)."

¹⁶ If the application of the statute is in some way limited, that limitation is by no means apparent from the case law or from the words of the statute, and the statute is thus incomprehensively vague in violation of the First and Fourteenth Amendments. See *NAACP v. Button*, 371 U.S. 415, 433 (1963) ("[T]he objectionable quality of vagueness and overbreadth . . . [depends] upon the danger of tolerating, in the area of First Amendment freedoms, the existence of a penal statute capable of sweeping and improper application.")

open for an appropriate case the question whether the public accommodation law permissibly could be applied to a genuine exercise of First Amendment rights." *Irish-American Gay*, 418 Mass. at 251-52, & n.21, 636 N.E.2d at 1300 & n.21. The Supreme Judicial Court's promise is not only entirely vague but also insufficient to limit the scope of these laws. As this Court has repeatedly held: "It would certainly be dangerous if the legislature could set a net large enough to catch all possible offenders, and leave it to the courts to step in and say who could rightfully be detained and who should be set at large." *City of Houston v. Hill*, 482 U.S. 451, 466 (1987), citing *United States v. Reese*, 92 U.S. 214, 221 (1876).

As a result, any individual or group in Massachusetts wishing to exercise First Amendment freedoms in a way that makes a distinction in treatment of persons based on certain government-specified criteria must do so in a church or private home, or commit a criminal act.

Under the overbreadth doctrine, a party may challenge an ordinance when it sweeps too broadly, penalizing a substantial amount of protected speech. See *Broadrick v. Oklahoma*, 413 U.S. 601 (1973). The Massachusetts public accommodation law regulates virtually any speech in any form by any person outside of private homes and churches, and it penalizes a substantial amount of constitutionally protected speech. The Massachusetts public accommodation law grants the government power to interfere directly in the composition and the content of constitutionally protected speech. It allows the government to impose upon citizens the obligation to promote messages those citizens oppose. It enables the government to grant a heckler's veto over protected speech to groups whose principal goal is opposition to the content of constitutionally-protected speech. The First and Fourteenth Amendments prohibit the Massachusetts courts from declaring the Veterans' Parade unlawful under a statute that is itself unconstitutionally overbroad.

As the decisions in this case demonstrate, the Massachusetts courts have their own opinions concerning the appropriateness of a message conveyed via a "pristine form of speech." The

Superior Court believes that "inclusiveness should be the hallmark" of the Veterans' Parade. The Veterans disagree. In an environment of respect for the First Amendment, the judges' opinions might be expressed in letters to a local newspaper. In Massachusetts, they are imposed by way of an injunction.

CONCLUSION

Petitioners pray that the judgments and decisions of the lower courts be reversed and vacated.

Respectfully submitted,

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STATUTORY APPENDIX**A. MASSACHUSETTS GENERAL LAWS
CHAPTER 272. CRIMES AGAINST CHASTITY,
MORALITY, DECENCY AND GOOD ORDER**

§ 92A. Advertisement, book, notice or sign relative to discrimination; definition of place of public accommodation, resort or amusement

No owner, lessee, proprietor, manager, superintendent, agent or employee of any place of public accommodation, resort or amusement shall, directly or indirectly, by himself or another, publish, issue, circulate, distribute or display, or cause to be published, issued, circulated, distributed or displayed, in any way, any advertisement, circular, folder, book, pamphlet, written or painted or printed notice or sign, of any kind or description, intended to discriminate against or actually discriminating against persons of any religious sect, creed, class, race, color, denomination, sex, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, nationality, or because of deafness or blindness, or any physical or mental disability, in the full enjoyment of the accommodations, advantages, facilities or privileges offered to the general public by such places of public accommodation, resort or amusement.

A place of public accommodation, resort or amusement within the meaning hereof shall be defined as and shall be deemed to include any place, whether licensed or unlicensed, which is open to and accepts or solicits the patronage of the general public and, without limiting the generality of this definition, whether or not it be (1) an inn, tavern, hotel, shelter, roadhouse, motel, trailer camp or resort for transient or permanent guests or patrons seeking housing or lodging, food, drink, entertainment, health, recreation or rest; (2) a carrier, conveyance or elevator for the transportation of persons, whether operated on land, water or in the air, and the stations, terminals and facilities appurtenant thereto; (3) a gas station, garage, retail

store or establishment, including those dispensing personal services; (4) a restaurant, bar or eating place, where food, beverages, confections or their derivatives are sold for consumption on or off the premises; (5) a rest room, barber shop, beauty parlor, bathhouse, seashore facilities or swimming pool, except such rest room, bathhouse or seashore facility as may be segregated on the basis of sex; (6) a boardwalk or other public highway; (7) an auditorium, theatre, music hall, meeting place or hall, including the common halls of buildings; (8) a place of public amusement, recreation, sport, exercise or entertainment; (9) a public library, museum or planetarium; or (10) a hospital, dispensary or clinic operating for profit; provided, however, that with regard to the prohibition on sex discrimination, this section shall not apply to any corporation or entity authorized, created or chartered by federal law for the express purpose of promoting the health, social, educational, vocational, and character development of a single sex; provided, further, that with regard to the prohibition of sex discrimination, those establishments which rent rooms on a temporary or permanent basis for the exclusive use of persons of the same sex shall not be considered places of public accommodation and shall not apply to any other part of such an establishment.

Any person who shall violate any provision of this section, or who shall aid in or incite, cause or bring about, in whole or in part, such a violation shall be punished by a fine of not more than one hundred dollars, or by imprisonment for not more than thirty days, or both.

§ 98. Discrimination in admission to, or treatment in, place of public accommodation; punishment; forfeiture; civil right

Whoever makes any distinction, discrimination or restriction on account of race, color, religious creed, national origin, sex, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, deafness, blindness or any physical or mental disability or ancestry relative to the admission of any person to, or his treatment in

any place of public accommodation, resort or amusement, as defined in section ninety-two A, or whoever aids or incites such distinction, discrimination or restriction, shall be punished by a fine of not more than twenty-five hundred dollars or by imprisonment for not more than one year, or both, and shall be liable to any person aggrieved thereby for such damages as are enumerated in section five of chapter one hundred and fifty-one B; provided, however, that such civil forfeiture shall be of an amount not less than three hundred dollars; but such person so aggrieved shall not recover against more than one person by reason of any one act of distinction, discrimination or restriction. All persons shall have the right to the full and equal accommodations, advantages, facilities and privileges of any place of public accommodation, resort or amusement subject only to the conditions and limitations established by law and applicable to all persons. This right is recognized and declared to be a civil right.

B. BOSTON TRANSPORTATION DEPARTMENT RULES AND REGULATIONS AS AMENDED THROUGH JANUARY 2, 1988 (1993)

Article VIII

PARADES, PROCESSIONS AND FORMATIONS

Section 1. Parades, Processions and Formations

No person shall take part in any parade, procession or other organized formation of persons or vehicles, other than a funeral procession or a picket line, in or upon any street, way, highway, road, or parkway under the control of the City unless the Commissioner of Transportation has granted a permit for such parade, procession, or formation. The Commissioner of Transportation shall issue such permit in all cases except where the time, place, and manner are not in conformity with the Rules set forth below, or where the permit would conflict as to time

or place with a permit previously issued. No fee shall be charged for any such permit.

1. The written request for the permit shall be filed with the Commissioner of Transportation at least seventy-two hours prior to the occurrence and should include the following:

- a. The date and starting time.
- b. The name, address and telephone number of the applicant and name of the organization involved.
- c. The formation or assembly area and time therefor.
- d. The route of the parade or motorcade and what portions of the streets traversed may be occupied by such parade or motorcade.
- e. The approximate number of people and vehicles in the parade or motorcade.

2. No permit shall be issued authorizing a parade, procession, or formation under the following conditions:

- a. When the sole purpose is advertising any product, goods, wares, merchandising, event, or is designed to be held for private profit.
- b. When the time, route, and size will disrupt the use of any street of any public place, or material portion thereof, which is ordinarily subject to great congestion of traffic and is chiefly of a business or mercantile character, except upon those holidays or Sundays when places of business along the route proposed are closed.
- c. When it is of a size or nature that requires the diversion of so great a number of police officers of the City to properly police the line of movement and the areas contiguous

thereto, that allowing the parade or motorcade would deny reasonable police protection to the City.

Special permits for occasions of extraordinary public interest, not annual or customary, or not so intended to be, may be granted by the Commissioner of Transportation for any street or public place, and for any day or hour, with the approval of a majority of the Boston Transportation Commission.

The Commissioner of Transportation shall have the authority to modify the route, time, and place of a parade to facilitate crowd control in the interest of relieving congestion and promoting public safety, provided that the applicant's right of free speech is not denied thereby.